IN THE UNITED STATES NAVY-MARINE CORPS
COURT OF CRIMINAL APPEALS

Before Panel No. 3

UNITED STATES — NMCCA No. 201300272

Appellee — **APPELLANT'S BRIEF AND ASSIGNMENTS OF ERROR**

v.

Gregory T. Miles
LCpl (E-3)
U.S. Marine Corps

Appellant

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES NAVY-MARINE CORPS COURT OF CRIMINAL APPEALS

Tried at Camp Foster, Okinawa, Japan, by general court-martial convened by Commanding General, III Marine Expeditionary Force, on 7 Jan, 7 Mar, and 3-4 Apr 2013.

Jared A. Hernandez
Lieutenant, JAGC, USN
Appellate Defense Counsel
Navy Marine Corps
Appellate Review Activity
1254 Charles Morris Street SE, Suite 100
Washington, D.C. 20374-5124
(202) 685-7389

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ASSIGNMENTS OF ERROR

I. TOGETHER, BNC AND EED ENGAGED IN CONSENSUAL SEXUAL CONDUCT WITH LCPL MILES. LCPL MILES WAS THEN CHARGED UNDER ARTICLES 120 AND 125, UCMJ FOR THIS ONE ACT. THIS WAS AN UNREASONABLE MULTIPLICATION OF CHARGES.

II. "INDECENT ACT", AS DEFINED BY ARTICLE 120(k), UCMJ, IS UNCONSTITUTIONALLY VAGUE AND OVERBROAD.

III. "INDECENT ACT", AS DEFINED BY ARTICLE 120(k), UCMJ, IS UNCONSTITUTIONAL AS APPLIED TO LCPL MILES.

IV. "SODOMY", AS DEFINED BY ARTICLE 125, UCMJ, IS UNCONSTITUTIONALLY VAGUE AND OVERBROAD.

V. "SODOMY", AS DEFINED BY ARTICLE 125, UCMJ, IS UNCONSTITUTIONAL AS APPLIED TO LCPL MILES.

STATEMENT OF STATUTORY JURISDICTION

Lance Corporal (LCpl) Gregory T. Miles received an approved court-martial sentence that included confinement for one year and a punitive discharge. Accordingly, his case falls within this Court's Article 66(b)(1), Uniform Code of Military Justice (UCMJ), 10 U.S.C. § 866(b)(1), jurisdiction.

STATEMENT OF THE CASE

LCpl Miles was charged with violating Articles 107, 120, 125, and 134, UCMJ. But a general court-martial, consisting of military judge alone, acquitted LCpl Miles of the most serious offenses charged. In fact, LCpl Miles was found not guilty, in whole or in part, of all charges except adultery.[1] Specifically, LCpl Miles was found not guilty of making a false official statement in violation of Article 107, UCMJ. He was also found not guilty of aggravated sexual assault, abusive sexual assault, and wrongful sexual contact in violation of Article 120, UCMJ. And LCpl Miles was found not guilty of consensual sodomy in violation of Article 125, UCMJ. LCpl Miles was convicted of attempted consensual sodomy and adultery in violation of Articles 80 and 134, UCMJ. Also, he was convicted of indecent acts for consensual sexual conduct between adults in violation of Article 120(k), UCMJ.[2]

This resulted in a sentence of a reduction to pay grade E1, forfeiture of all pay and allowances, confinement for one year and a bad-conduct discharge that the convening authority subsequently approved.[3]

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[1] R. at 234-35.

[2] 10 U.S.C. § 920(k) (2006).

[3] R. at 268; Convening Authority's Action of 8 Jul 13.

STATEMENT OF FACTS

BNC was angry with her husband.[4] This was not the first time they had fought since arriving to Okinawa.[5] They had bickered over money, their marriage, and a recent miscarriage.[6] But this night was supposed to be different.[7] This night was a "girl's night" that had been planned for weeks and BNC was going to have fun.[8] It didn't matter if she was only eighteen years old and underage; she was going to drink in the club.[9] She was out with her best friend EED; and they were going to drink, and dance, and flirt the night away.[10] So after loading up on drinks in town, the girls headed to "The Palms."[11]

The Palms is the on-base enlisted club; it was there that they met LCpl

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[4] R. at 57.

[5] R. at 70, 108; Appellate Exhibit VIII.

[6] *Id.*

[7] R. at 52, 77, 107, 154.

[8] *Id.*

[9] R. at 56, 158.

[10] R. at 77, 80, 100, 106, 154, 157-58. Prosecution Exhibit 14 at 14-16.

[11] R. at 53; Appellate Exhibit X at 1 ("I think I had two shots of liquor while I was in this bar, one of Bailey's, and one Tequila. I also had two mixed drinks, both of them were Peach Schnapps and Sprite. We then went to Yumi's and stayed for about fifteen or twenty minutes. During that time I had a shot called a 'snake bite.' It's a mixture of Southern Comfort and Red Bull. … We left and then went to East Coast and stayed until 11:00. I had one mixed drink at this bar, a vodka and orange juice drink.").

Miles.[12] LCpl Miles arrived with a few of his friends just as BNC and EED were about to leave The Palms.[13] The three hit it off immediately so BNC and EED decided to stay at the club to dance and talk to this Marine.[14] LCpl Miles was clearly flirting with the girls and he believed they were flirting back.[15] There was playful poking and grabbing and EED knew that her actions could be perceived as flirtatious.[16] BNC was throwing out flirtatious signs as well.[17] The atmosphere was definitely friendly.[18] After flirting with LCpl Miles, the group went to the dance floor.[19] That's when the girls began dancing together.[20] And just when the music was pumping, BNC threw her hands up and everybody saw it: no wristband.[21]

The bouncers pulled BNC off the dance floor and, since she was caught drinking underage, kicked her out of the club.[22] One of the bouncers confiscated

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[12] Prosecution Exhibit 14 at 11-15. Appellate Exhibit X at 2.

[13] Prosecution Exhibit 14 at 11-15, 64.

[14] Prosecution Exhibit 14 at 11.

[15] Prosecution Exhibit 14 at 11-15.

[16] R. at 100; Prosecution Exhibit 14 at 15, 65.

[17] Prosecution Exhibit 14 at 15.

[18] R. at 57.

[19] Appellate Exhibit IX at 1.

[20] R. at 157.

[21] Prosecution Exhibit 14 at 67.

[22] R. at 56, 158; Prosecution Exhibit 14 at 67.

BNC's ID, escorted her to the front desk, and made her call her husband.[23] But BNC wasn't ready to leave yet, so she talked her way back into the club and gave LCpl Miles her phone number.[24] After flirting all night, EED and BNC gave LCpl Miles their phone number.[25] After all, BNC had a party at her house next weekend so if LCpl Miles wanted to see EED again, he needed their digits.[26] BNC told him that she was always with EED, and if you hang out with EED, you'll always get the both of them.[27] After the girls left, LCpl Miles began texting back and forth with EED.[28] Not wanting the night to be over, EED invited LCpl Miles to the barracks where the girls were staying.[29] After talking and hanging out for a bit, the group went to the "mat room" to wrestle.[30]

SUMMARY OF ARGUMENT

I. Together, BNC and EED engaged in consensual sexual conduct with LCpl Miles. BNC, fearing that her husband would find out, reported the act as a sexual

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[23] Appellate Exhibit X at 2.

[24] Appellate Exhibit X at 2; Prosecution Exhibit 14 at 68.

[25] Prosecution Exhibit 14 at 16, 69.

[26] R. at 82; Prosecution Exhibit 14 at 16, 69.

[27] Prosecution Exhibit 14 at 69.

[28] Prosecution Exhibits 11-13, 16-19; Prosecution Exhibit 14 at 17.

[29] R. at 84; Prosecution Exhibit 14 at 18.

[30] R. at 84-85.

assault. Because of that, LCpl Miles was charged "six ways from Sunday". The evidence did not sustain any of the sexual assault claims made by BNC and LCpl Miles was found not guilty of the most serious charges. But, the government had charged several "catch-all crimes" in order to ensure a conviction. Two of those offenses, indecent acts and sodomy, consisted of the same conduct. Since this charging decision misrepresented LCpl Miles' criminality and unreasonably increased his punitive exposure. This was an unreasonable multiplication of charges. Thus, this Court should dismiss the conviction for indecent acts and reassess the sentence accordingly.

II. Article 120(k), UCMJ, Indecent Act, is unconstitutionally vague and overbroad. Precedent pertaining to "Article 134 style" indecent acts is inapplicable. Precedent upholding Article 120(k) is wrongly decided.

III. Article 120(k), UCMJ, Indecent Act, is unconstitutional as applied to LCpl Miles. Consensual sexual conduct between three partners is not "vulgar, obscene, and repugnant to common propriety" when applying contemporary community standards. Congress itself has already removed indecent acts from Article 120.[31] In fact, as of June 28, 2012, "Indecent Acts" is no longer an

[31] National Defense Authorization Act for Fiscal Year 2012, Pub. L. No. 112-81, § 541, 125 Stat. 1298 (2011).

enumerated crime at all.[32]

IV. "Sodomy", as defined by Article 125, UCMJ, is unconstitutionally vague and overbroad.

V. "Sodomy", as defined by Article 125, UCMJ, is unconstitutional as applied to LCpl Miles. LCpl Miles was convicted of attempted consensual sodomy. The government never alleged force in this case and the military judge did not articulate *Marcum* factors for sodomy.

ARGUMENT

I. *THE GOVERNMENT SUBJECTED LCPL MILES TO AN UNREASONABLE MULTIPLICATION OF CHARGES.*

Standard of Review

An unreasonable multiplication of charges is reviewed under an abuse of discretion standard.[33]

Principles of Law

The Manual for Courts-Martial states, and courts have agreed that, "what is substantially one transaction should not be made the basis for an unreasonable

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[32] LCpl Miles was alleged to have committed these acts on February 3, 2012. This means that just five months later, his conduct would not have been criminal under Article 120.

[33] *United States v. Pauling*, 60 M.J. 91, 95 (C.A.A.F. 2004) (quoting *United States v. Monday*, 52 M.J. 625, 628 n.8 (A. Ct. Crim. App. 1999)).

multiplication of charges."[34] A claim based on unreasonable multiplication of charges is conceptually different than a claim of multiplicity.[35] The concept of unreasonable multiplication of charges "promotes fairness considerations separate from an analysis of the statutes, their elements, and the intent of Congress."[36] This issue may be raised for the first time on appeal.[37]

In *United States v. Quiroz*, this Court applied five factors to determine whether a multiplication of charges or specifications was unreasonable.

1. Did the accused object at trial that there was an unreasonable multiplication of charges and/or specifications?
2. Is each charge and specification aimed at distinctly separate criminal acts?
3. Does the number of charges and specifications misrepresent or exaggerate the appellant's criminality?
4. Does the number of charges and specifications unreasonably increase the appellant's punitive exposure? and;
5. Is there any evidence of prosecutorial overreaching or abuse in the drafting of the charges?

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[34] See R.C.M. 307(c)(4), Discussion.

[35] See *United States v. Joyce*, 50 M.J. 567, 568 (N-M. Ct. Crim. App. 1999).

[36] *United States v. Quiroz*, 55 M.J. 334, 337 (C.A.A.F. 2001).

[37] *Id.* at 338.

When charges refer to the same factual conduct, they are not directed at "distinctly separate" criminal acts. Similarly, an accused's criminality is exaggerated when punished separately for charges that are based upon the same factual conduct. In *Quiroz*, the defendant's criminality was exaggerated because charges that were based on the same conduct were considered separate offenses for findings and sentencing.

Discussion

A. Charged and punished separately for the same offense.

Here, LCpl Miles was charged and punished two separate ways for one act, consensual sexual conduct with EED and BNC.

Conclusion

Here, there is an unreasonable multiplication of charges for findings and sentencing. Dismissal of the unreasonable charge is an appropriate remedy.[38] Therefore, this Court should set aside the indecent acts charge and reassess the sentence accordingly. If instead this Court finds that there is an unreasonable multiplication of charges for sentencing alone, then this Court should reassess the sentence by setting aside the punitive discharge.

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[38] *Campbell*, 71 M.J. at 22-23; cf. *United States v. Ducharme*, 59 M.J. 816, 819-20 (N-M. Ct. Crim. App. 2004) (court dismissed the conviction deciding it was an unreasonable multiplication of charges and merged specifications).

CONCLUSION

LCpl Miles was found guilty for attempting an act that is not criminal. This Court should set aside his conviction for attempted consensual sodomy and reassess the sentence by disapproving the bad-conduct discharge.

Respectfully submitted.

JARED A. HERNANDEZ
Lieutenant, JAGC, USN
Appellate Defense Counsel
Navy Marine Corps
Appellate Review Activity
1254 Charles Morris Street SE, Suite 100
Washington, D.C. 20374-5124
(202) 685-7389

CERTIFICATE OF FILING AND SERVICE

I certify that the foregoing was delivered to the Navy-Marine Corps Court of Criminal Appeals, and that a copy was served on Appellate Government Division on 16 December 2013.

JARED A. HERNANDEZ
Lieutenant, JAGC, USN
Appellate Defense Counsel
Navy Marine Corps
Appellate Review Activity
1254 Charles Morris Street SE, Suite 100
Washington, D.C. 20374-5124
(202) 685-7389